

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406719	FLORES VS SANCHEZ	MOTION TO COMPEL ATTENDANCE AND TESTIMONY OF PLAINTIFF AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$2,983.50 AGAINST PLAINTIFF AND/OR HIS COUNSEL OF RECORDS

Tentative Ruling:

GRANT the Motion to Compel.

Plaintiff Kourage Flores is Ordered to appear for deposition to provide testimony at defense counsel's office within 20 days of today's date. Plaintiff and her attorney of record, Shaun J. Bauman, are sanctioned in the sum of \$960, payable to defense counsel within 30 days.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501881	CARRERA VS BOARD OF ADMINISTRATION OF THE CALIFORNIA PUBLIC EMPLOYEES' RETIREMENT SYSTEM	HEARING RE: WRIT OF MANDATE

Tentative Ruling:

DENY the Petition for Writ of Mandamus.

Petitioner brings this Petition for Writ of Mandamus, contending that the Board of Administration of the California Public Employees' Retirement System (Respondent) improperly decided to cancel his application for industrial disability retirement (IDR), and on appeal, the Administrative Law Judge improperly determined that Petitioner was not eligible to apply for IDR.

On March 18, 2019, Petitioner accepted the City of Bell's CCP § 998 offer to settle his civil whistleblower lawsuit on the following terms:

Plaintiff shall permanently separate from City employment. Plaintiff shall not seek future employment with the City. The City shall pay Plaintiff the sum of FOUR HUNDRED FIFTY THOUSAND DOLLARS AND ZERO CENTS (\$450,000.00) in satisfaction of all claims for damages...

Petitioner's acceptance of the 998-offer resulted in his permanent separation from the City's employment through resignation. The ALJ's finding that the Petitioner's and City's relationship was completely severed by the settlement agreement, and precluded reinstatement, was supported by the evidence. In *Martinez v. Public Employees Retirement System* (2019) 33 Cal.App.5th 1156, the court held that the Plaintiff could not apply for disability benefits because the acceptance of a settlement offer in that case resulted in Plaintiff's permanent separation from state service, without the possibility of reinstatement. In *Haywood v. American River Fire Protection District* (1998) 67 Cal.App.4th 1292, the Plaintiff was terminated for cause. After his termination, Plaintiff applied for disability retirement. The court there held that where "an employee is fired for cause and the discharge is neither the ultimate result of the disabling medical condition nor preemptive of an otherwise valid claim for disability retirement, the termination of the employment relationship renders the employee ineligible for disability retirement regardless of whether a timely application is filed." (Id. at 1307.) The court added; "Haywood's firing for cause constituted a complete severance of the employer-employee relationship, thus eliminating a necessary requisite for disability retirement—the potential reinstatement of his employment relationship with the District if it ultimately is determined that he no longer is disabled." (Id. at 1297.)

Both *Martinez* and *Haywood* are applicable here. Petitioner's acceptance of the settlement offer resulted in the complete severance of the employer-employee relationship, making Petitioner ineligible for disability benefits. While the ALJ mistakenly concluded that disciplinary charges were pending against Petitioner at the time of the settlement, that issue had no impact on the ALJ's ultimate finding that Petitioner was ineligible for disability retirement.

The court finds that the ALJ did not abuse his discretion in denying Petitioner's appeal.